

SENATE No. 2858

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, January 22, 2026.

The committee on Public Safety and Homeland Security to whom was referred the petition (accompanied by bill, Senate, No. 1720) of Liz Miranda, Joanne M. Comerford, Mike Connolly, James B. Eldridge and other members of the General Court for legislation relative to regulating visits in state prisons and correctional facilities, report the accompanying bill (Senate, No. 2858).

For the committee,
John J. Cronin

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An Act to build restorative family and community connection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 36C of chapter 127 of the General Laws of 2022, is hereby amended by striking
2 out the section in its entirety and inserting in place thereof the following:

3 (a) A correctional institution, jail or house of correction shall not: (i) prohibit, eliminate
4 or unreasonably limit in-person visitation of inmates; or (ii) coerce, compel or otherwise pressure
5 an inmate to forego or limit in-person visitation. For the purposes of this section, to unreasonably
6 limit in-person visitation of inmates shall include, but not be limited to, providing an eligible
7 inmate fewer than 2 opportunities for in-person visitation during any 7-day period.

8 (b) A correctional institution, jail or house of correction may use video or other types of
9 electronic devices for inmate communication with visitors; provided, that such communications
10 shall be in addition to and shall not replace in-person visitation, as prescribed in this section.

11 (c) The Commissioner of Correction and administrators of state prisons and county
12 correctional facilities shall allow up to 20 individuals to be eligible to visit an incarcerated
13 person.

(d) The Commissioner of Correction and administrators of state prisons and county correctional facilities shall permit individuals to visit more than one incarcerated person in correctional custody, including in the same facility, unless there is an individual determination that such visitation would pose a threat to security or orderly running of the facility. The incarcerated person and the visitor shall be provided with a written explanation of the basis for any such determination, including the objective reasoning and all evidence that was relied upon for the determination. Any such determination may be challenged by an action under Mass. General Laws chapter 249 section 4.

e) Nothing in this section shall prohibit the temporary suspension of visitation privileges for good cause including, but not limited to, misbehavior or during a bonafide emergency.